



Private Nuisance

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Overview of Nuisance

- Two torts involving nuisance, but they are quite different
- **Private nuisance** protects private individuals against interference with their use and enjoyment of their land. Related torts are:
 - Trespass – direct and physical intrusion onto plaintiff's land (no need to show damage)
 - The rule in *Rylands v Fletcher* – escape of something likely to cause damage, arising from a neighbour's non-natural use of land (damage must be shown)
 - Negligence – damage to land caused by carelessness (damage must be shown)
- **Public nuisance** protects public in exercise of rights that are common to all citizens
 - More of a criminal than a tort concept
 - Only becomes a tort when an individual can show the nuisance has caused special damage to them personally



- Private nuisance is about incompatible uses of land
- What is this noise?



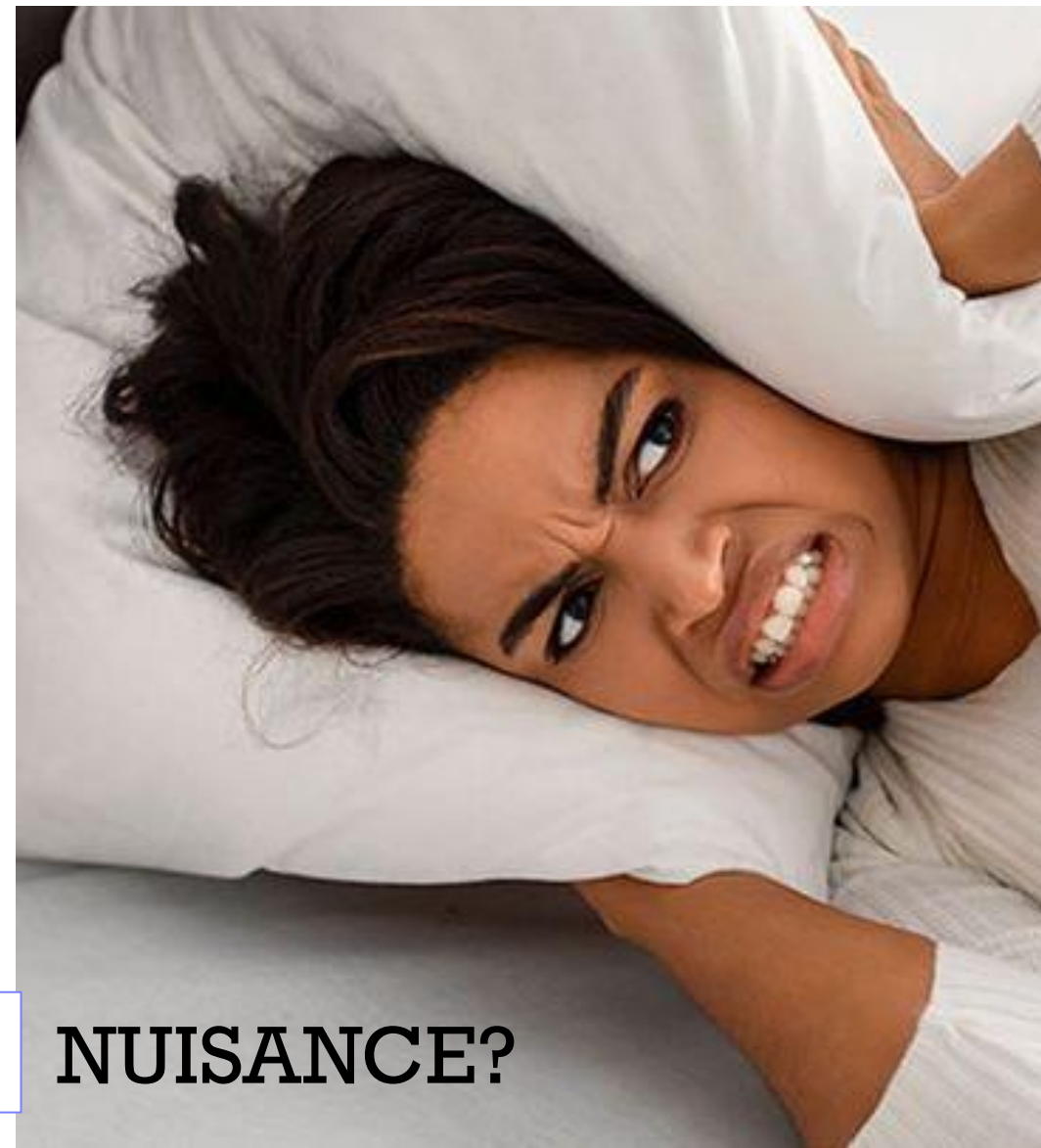
Intro to Private Nuisance

- When is private nuisance most frequently used?
- It balances two interests: the defendant's interest in using their land the way they want, and the plaintiff's interest in the use and enjoyment of land
- Often mirrors the moralist vs instrumentalist approaches
- Cases emphasize give and take, and need for tolerance
- But when should tolerance stop?



NIMBY

OR



NUISANCE?

Intro to Private Nuisance (continued)

- Private nuisance involves:
 - **Interference with land**
 - **That is substantial and unreasonable**
 - **The remedy for which is usually an injunction, but sometimes damages**
- Liability only where interference was unreasonable (how is this different from the reasonableness analysis in negligence?)
- “Reasonableness” often involves value judgments

Appleby v Erie Tobacco

- How did the court define nuisance?
- Why did the plaintiff sue? What are their claims?
- How did the defendant respond?
- What did the court consider?
- What did the court not consider?



Who can Sue or be Sued?

- Plaintiffs:
 - Those with proprietary rights or an interest in land
 - Aboriginal rights can also confer standing to bring a claim in nuisance (*Thomas v Rio Tinto Alcan*, 2024 BCCA 62, paras 76-79)
- Defendants:
 - Creator of the nuisance
 - Possessors of land, even if nuisance is created by strangers, predecessors, or acts of nature
 - *Sedleigh-Denfield v O'Callaghan*
 - *Goldman v Hargrave*

Interference with Land

- Physical damage to the land itself
 - With intrusion
 - Without intrusion
- Interference with the use and enjoyment of land (amenity)
 - With intrusion
 - Without intrusion

Substantial

- Screens out weak or unmeritorious claims
- “Substantial” = substantially alters the nature of the plaintiff’s property or significantly interferes with the use of it (*Antrim Truck*, at para 22)
- “Minor, transitory, trivial, or trifling” interferences do not qualify (see *Rogers v Elliott*, Weinrib pp 4-5)
- No protection for delicate sensibilities – why not?
- *Smith v Inco*, [2011] ONCA 628 – interference was not substantial. Why?

Loss of Amenity
without Intrusion
≠ Substantial

- Loss of amenity without intrusion does not usually qualify as 'substantial'
- Courts are reluctant to impose liability for things like blocked views, blocked sunlight, blocked TV signals
- Nuisance protects use and enjoyment of property, not property values (although property values can be used in calculating damages)
- Claims solely for decline in property values are unlikely to succeed



Nimby or Nuisance?

- *Bryant v Lefever* (1879)
- *Shuttleworth v Vancouver General Hospital* (1927)
- *Fontainebleu Hotel* (1959)
 - Menti poll – NIMBY or nuisance?
 - <https://www.menti.com/al2qroglt21p>
 - 2552 0744
- But see *Fearn* [2023] UKSC 4

Unreasonable

- Analysis of the reasonableness of the interference is required in all cases (*Antrim*)
- Courts must balance gravity of harm against utility of defendant's conduct (*Antrim* at para 26)
- But focus is on whether the interference suffered by the plaintiff is unreasonable (*Antrim* at para 28)
- Courts will consider:

Character of harm	Timing of interference
Character of neighbourhood	Utility of defendant's conduct
Intensity of interference	Nature of defendant's conduct
Duration of interference	



Character of Harm

- Is the harm just to amenity (comfort and enjoyment)?
- Or is it to something more permanent?
- Usually interference has to be continual, but an isolated incident may be enough if severe
 - *Tock v St John's*, [1989] 2 SCR 1181



Character of Neighbourhood

- Location, location, location:
“What would be a nuisance in Belgrave Square would not necessarily be so in Bermondsey”
- What is the danger here?
- Nuisance may occur even allowing for local standards (*Appleby v Erie Tobacco*)
- Compliance with zoning bylaws is considered, but not conclusive



Intensity of Interference

- Must be of sufficient intensity to be intolerable to the ordinary citizen
- Who is the ordinary citizen?
- Example: decibels that exceed public health standards
- Subjective evidence of plaintiffs is considered



Duration and Timing of Interference

- Is it long-term, or just temporary?
 - See *Antrim* at para 42
- During day or night?
- Does it disrupt sleep?
- What about people who do shift work?

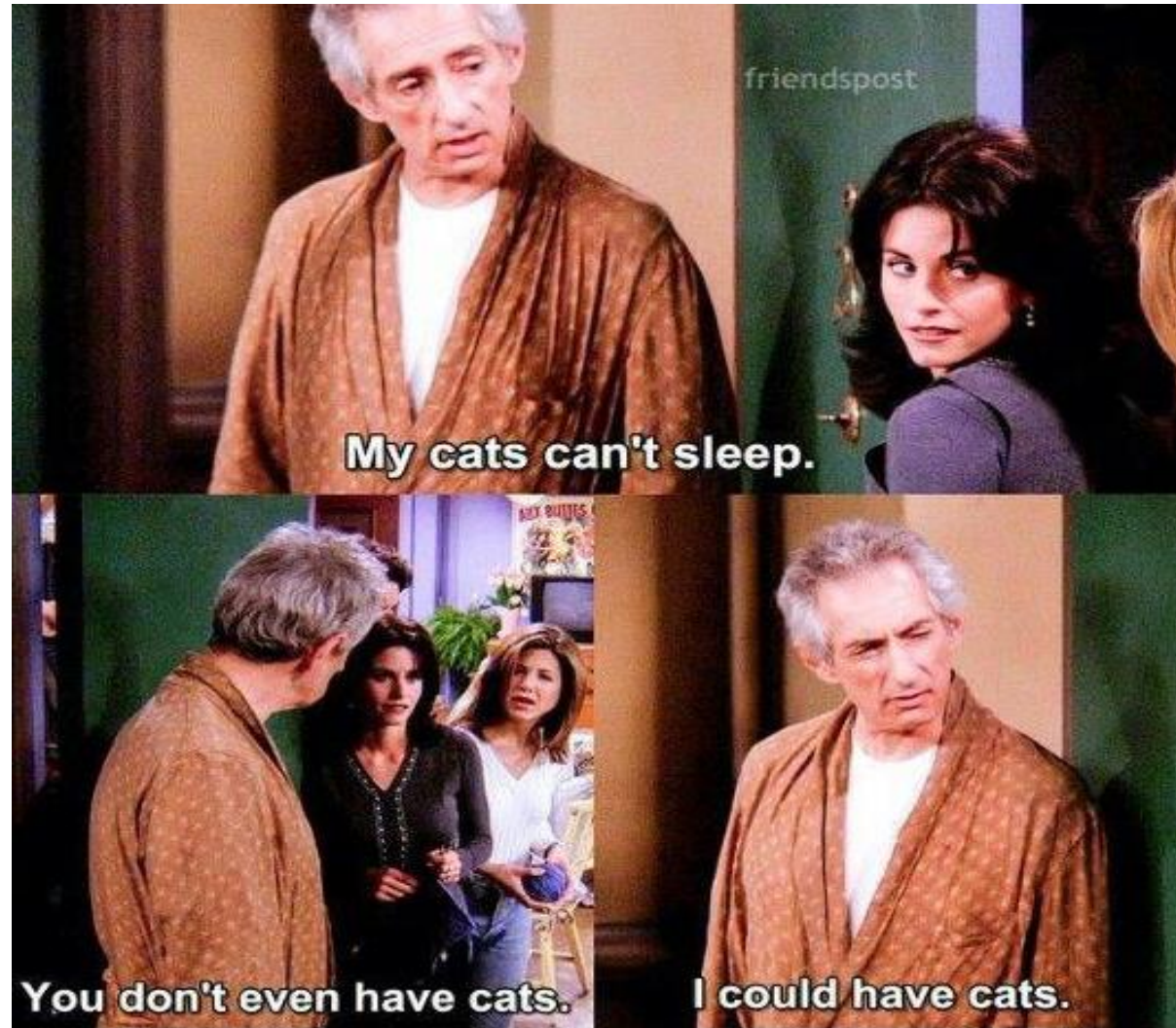


Utility of Defendant's Conduct

- Not a defence, but it can inform reasonableness analysis
- Certain activities are more or less likely to be found unreasonable
- *Bamford v Turnley* (Weinrib pages 17-18)
- *Antrim* (para 38) – even if the defendant's conduct was for a valuable public purpose, should the plaintiff bear the burden without compensation?

Nature of Defendant's Conduct

- Focus is usually on plaintiff, but there is some weighing of reasonableness of each party's conduct (*Antrim* at para 29)
- Taking care is not a defence, but can inform reasonableness analysis (*Antrim* at paras 29, 38, 44)
- Courts don't look kindly on defendants who act maliciously or to annoy the plaintiff
 - *Christie v Davey*
 - *Hollywood Silver Fox Farms*





Sensitivity of Plaintiff

- No liability if plaintiff is abnormally sensitive
- But it might be relevant if defendant knew of sensitivity and acted maliciously
- *Hollywood Silver Fox Farms v Emmett*

Defences

1. Statutory Authority

- This defence was in favour in the 19th century due to the rise of industry, but now the view is that enterprises that create risk should bear the burden of that risk
- The SCC has narrowed the defence to almost nothing
- *Tock v St John's*, [1989] 2 SCR 1181
 - What happened?
 - What did the defendant say in its defence?
 - How did the court narrow down this defence?
 - What was the approach of Justices LaForest and Dickson?
- *Ryan v Victoria (City of)*, [1999] 1 SCR 201
- *Antrim v Ontario* at para 38



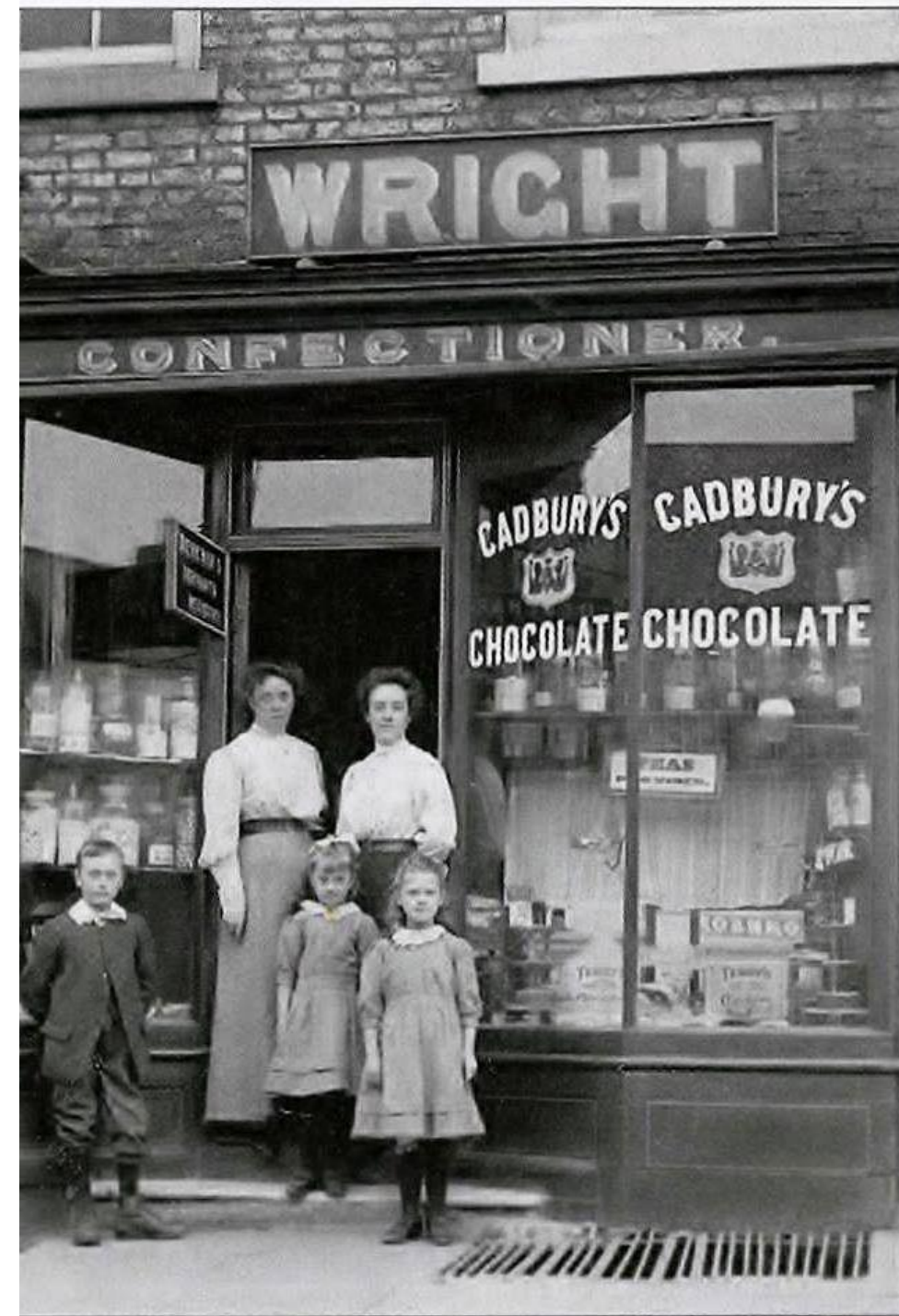
- 2. Statutory Immunity**
(legislation immunizes certain land uses from claims in nuisance)
- 3. Consent** (must be active approval/encouragement of activity)
- 4. Prescription** (nuisance continued uninterrupted for 20 years and plaintiff knew and did nothing)

Coming to the Nuisance

- This is not a defence, because land uses change and evolve
- *Sturges v Bridgman* (EWCA 1879)
- *Miller v Jackson* (EWCA 1977)
- *Coventry v Lawrence* (UKSC 2014)

Sturges v Bridgman (1879)

- Plaintiff physician owned garden behind his house
- Defendant confectioner's premises backed onto plaintiff's garden
- Defendant used industrial pestle & mortar built into his back wall
- Plaintiff built consulting room in garden that shared the back wall
- Plaintiff said noise and vibrations = nuisance
- Defendant said he was there first
- Who won and why?





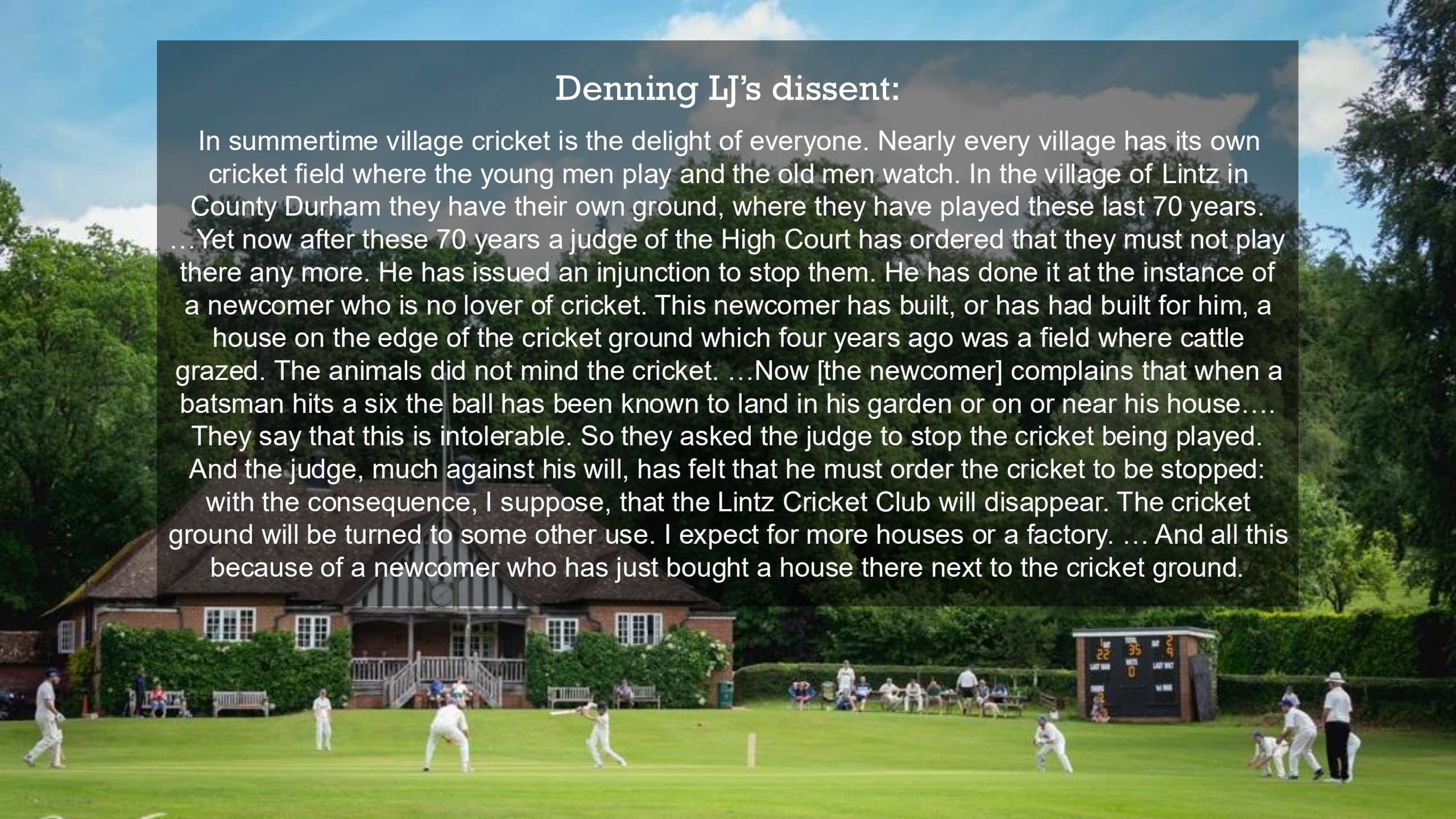
Miller v Jackson (1977)

- Cricket ground operated since 1905
- Subdivision built in 1970s
- Millers owned one of the houses and said stray cricket balls = nuisance
- Cricket club took safety measures and offered to pay for property damage
- Millers sued for an injunction and damages
- Millers = NIMBYs or suffering a nuisance?



Denning LJ's dissent:

In summertime village cricket is the delight of everyone. Nearly every village has its own cricket field where the young men play and the old men watch. In the village of Lintz in County Durham they have their own ground, where they have played these last 70 years. ...Yet now after these 70 years a judge of the High Court has ordered that they must not play there any more. He has issued an injunction to stop them. He has done it at the instance of a newcomer who is no lover of cricket. This newcomer has built, or has had built for him, a house on the edge of the cricket ground which four years ago was a field where cattle grazed. The animals did not mind the cricket. ...Now [the newcomer] complains that when a batsman hits a six the ball has been known to land in his garden or on or near his house.... They say that this is intolerable. So they asked the judge to stop the cricket being played. And the judge, much against his will, has felt that he must order the cricket to be stopped: with the consequence, I suppose, that the Lintz Cricket Club will disappear. The cricket ground will be turned to some other use. I expect for more houses or a factory. ... And all this because of a newcomer who has just bought a house there next to the cricket ground.





Lintz Cricket Club

Officials - Past and Present

Chairman



Bob Jackson

Vice-Chairman

Picture to follow

James Murray

Secretary & Fixture Secretary



Robert Cook

BEWARE
CRICKET
BALLS

OAKWOOD HILL VILLAGE HALL



Coventry v Lawrence (2014)

- Plaintiffs bought house near to dirt bike racing track, complained about the noise
- Defendants said the plaintiffs came to the nuisance
- Defendants also said they had planning permission
- Who won and why?



Remedies

1. Injunction

- This is the usual remedy for private nuisance
- It focuses on the moralist approach. How so?
- Appropriate if nuisance is continuing and there is prospect of future damage
- Discretionary remedy
- Terms of an injunction can be:
 - **Prohibitive** (stops defendant from doing something)
 - **Mandatory** (requires defendant to do something)
 - **Interlocutory** (while litigation is still continuing)

Remedies

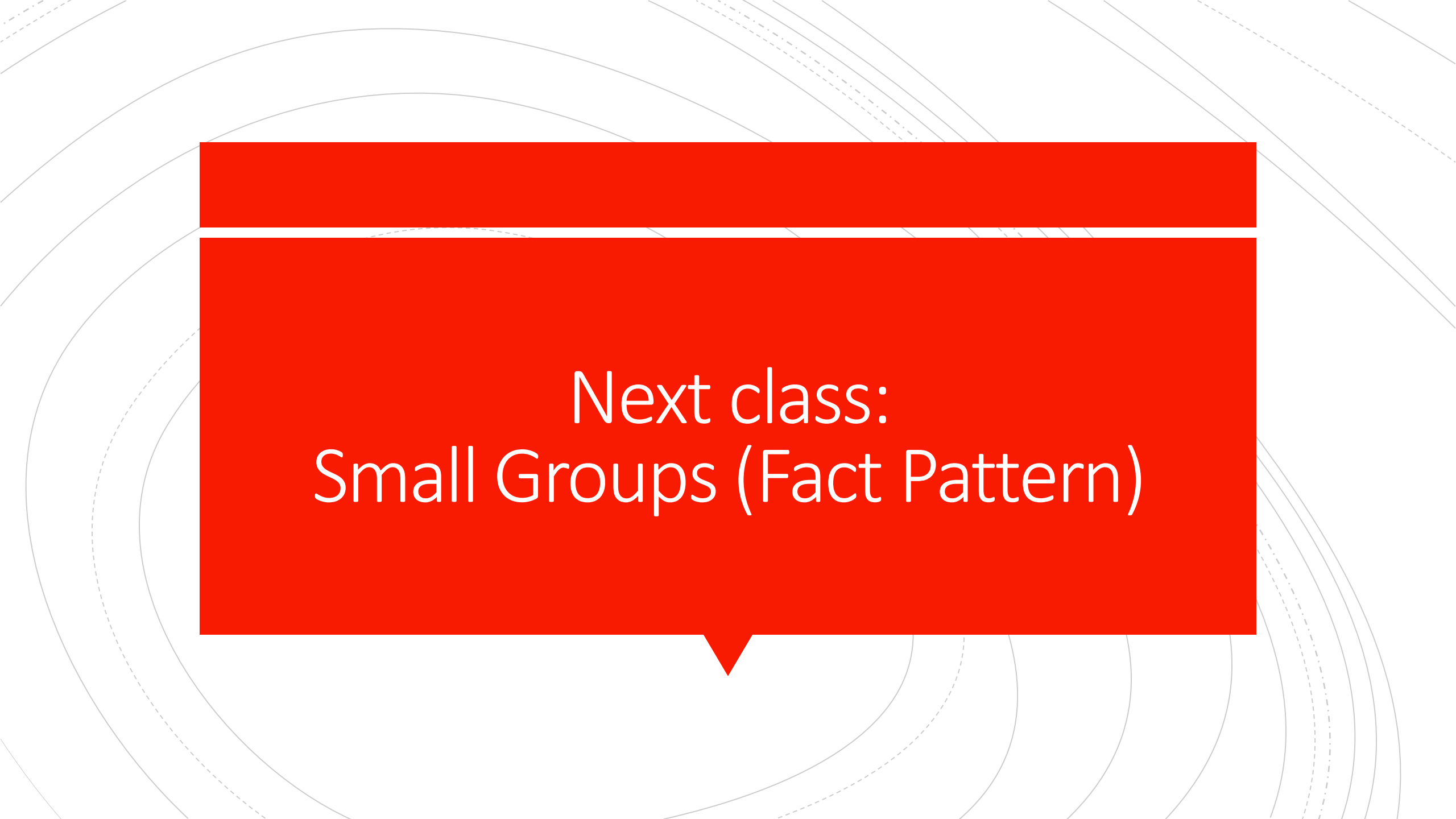
2. Damages

- This focuses on the instrumentalist approach. How so?
- *Coventry* – an award of damages may be sufficient if:
 - Nuisance has stopped
 - Damage is small
 - Amount can be feasibly quantified
 - Compensation is adequate
 - An injunction would be oppressive to the defendant
- Damages may be quantified by fall in property values
- What competing social values are weighed when a court decides whether to award an injunction or damages?
 - *Spur Industries v Del E Webb Development*

Remedies

3. Abatement (self-help)

- This has fallen out of judicial favour:
 - People should rely on civil justice system
 - Self-help can lead to violence
- Appropriate in case of trivial nuisances
- You can enter the wrongdoer's land to abate the nuisance, but notice is required unless it's an emergency

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Next class:
Small Groups (Fact Pattern)